Initial Post

The "digital turn" in human rights investigations has transformed the field from a reliance on physical, in-situ forensic access to a model of "surveillant witnessing" supported by digital technologies (Hancock et al., 2024). While these technologies enable investigators to collect evidence from inaccessible regions, they can also introduce risks to fairness and accountability. Hancock et al. (2024) argue that algorithmic systems may create a "false sense of bright spots," where the absence of detected violations is wrongly interpreted as evidence that no abuse has occurred. This can result in investigators overlooking abuses in data-poor regions while prioritising areas with greater digital coverage. In addition, complex data-sharing practices create an "accountability horizon," making it difficult to determine responsibility when information is misused or causes unintended harm.

Technological solutions developed without input from affected communities present further risks. Without local knowledge, systems may misinterpret cultural or operational contexts or exclude vulnerable people who lack access to digital technologies. As Koenig et al. (2021) note, digital evidence should support rather than replace traditional investigative methods. Similarly, Kannegieter (2023) highlights concerns regarding privacy and the reliability of satellite imagery, while Jobin, Ienca and Vayena (2019) emphasise the importance of ethical AI governance. These risks can be mitigated through participatory co-design, transparent algorithmic audits, strong data governance and continued human oversight to ensure that technology supports fair, accountable and rights-based investigations.

References

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